

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Josephine Ogboye	Team: Team # 2	CCRB Case #: 200901359	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Saturday, 01/24/2009 4:37 AM	Location of Incident: 238 Sherman Avenue	Precinct: 34	18 Mo. SOL 7/24/2010	EO SOL 7/24/2010	
Date/Time CV Reported Mon, 01/26/2009 12:01 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 01/28/2009 2:02 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Michael Mchugh	04363	925715	034 PCT
2. POM Brian Jay	29733	919208	034 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM John Walters	08581	939672	034 PCT
2. POM Johnny Diaz	31661	915603	034 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Brian Jay	Force: Officer Brian Jay used physical force against § 87(2)(b)	
B.SGT Michael Mchugh	Force: Sgt. Michael McHugh used physical force against § 87(2)(b)	
C.POM Brian Jay	Force: Officer Brian Jay used physical force against § 87(2)(b)	
D.POM Brian Jay	Abuse: Officer Brian Jay refused to provide his name and/or shield number to § 87(2)(b)	

Synopsis

§ 87(2)(b) filed this complaint with IAB on January 26, 2009, under log #09-03723. It was referred to the CCRB on January 28, 2009. On January 24, 2009, at approximately 4:37PM, upon exiting the “Red Lounge” located at 238 Sherman Avenue, in Manhattan, § 87(2)(b) and his cousin, § 87(2)(b), got into a fight in the middle of the street with a third male, identified through investigation as § 87(2)(b). Officer Johnny Diaz, identified through the arrest report, and three other officers, identified through investigation as Sgt. Michael McHugh, Officer Brian Jay, and Officer Walters, who were parked in front of the location, approached the group. § 87(2)(b) attempted to run away, but Officer Jay and Officer Diaz chased him while Sgt. McHugh and Officer Walters apprehended § 87(2)(b) and § 87(2)(b). Officer Jay caught up to § 87(2)(b) grabbed him from behind (wrapping his arms around § 87(2)(b)'s chest) and pulled him to the ground (**allegation A**). § 87(2)(b) resisted being placed in handcuffs and positioned himself in push-up position so that the officers could not grab his arms. Sgt. McHugh, using his foot, swept § 87(2)(b)'s right arm off the ground, causing him to fall to the ground (**allegation B**). § 87(2)(b) who sustained a bruise to his face, was also bleeding from his lip and he spit blood on Officer Jay's boots. In response, Officer Jay allegedly kicked him three or four times in the head (**allegation C**). While at the stationhouse, § 87(2)(b) allegedly asked Officer Jay for his name and shield number, but Officer Jay refused to provide the information (**allegation D**).

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].”

Summary of Complaint

§ 87(2)(b) was interviewed at the CCRB on February 10, 2009 (encl. 6a-e). § 87(2)(b) is a § 87(2)(b), 5' 9" tall, 160-pound, Hispanic male with brown hair and brown eyes. He currently resides at § 87(2)(b), in Manhattan.

On January 24, 2009, at approximately 4:30AM, § 87(2)(b) along with his cousin, § 87(2)(b) and his friends, § 87(2)(b) (unknown last name) and § 87(2)(b) were at the “Red Lounge,” located at 238 Sherman Avenue, in Manhattan, and getting ready to leave when a fight broke out. § 87(2)(b) had a verbal exchange with an unidentified female, and during the exchange an unidentified male (who might have been her boyfriend) swung at § 87(2)(b). § 87(2)(b) explained that although the male's hand did make contact with his face (around his nose and lips), the punch did not land directly on his face, but it grazed his face. § 87(2)(b) did not feel any injury or pain from the contact and he was not bleeding at that point.

§ 87(2)(b) ran out into the street because “it got crazy inside,” and a fight broke out which eventually spilled outside. Once § 87(2)(b) got outside, he saw his cousin, § 87(2)(b) fighting with another male (identified from the complaint report as § 87(2)(b) in the middle of the street. § 87(2)(b) ran towards them and tried to drag his cousin away from the fight. § 87(2)(b) did not hit § 87(2)(b). All he did was grab § 87(2)(b)'s arm and try to pull him away. As he did so, he noticed a group of about four or five males, whom he later realized were plainclothes officers, rush towards them. § 87(2)(b) feared that the males were coming to attack him and his cousin, so he pulled his cousin and began to run. He ran about five to ten steps when about two or three of the plainclothes officers grabbed him from behind and “tackled him to the ground.” § 87(2)(b) did not see which officers exactly grabbed him from behind, but he noted that there had to have been more than one officer because once he fell to the ground, he saw three officers standing over him. § 87(2)(b) explained that the officers grabbed his arms from behind as they pushed him to the ground, so he was unable to protect himself as he fell towards the ground. He fell facedown and sustained scrapes and bruises to the right side of his face (around his cheek bone) and began to bleed from the injuries and also from his nose. One of them, described as a 6ft tall, bald Hispanic male, in his late thirties, and identified through investigation as Officer Johnny Diaz, placed § 87(2)(b) in handcuffs (with his arms to his back).

§ 87(2)(b) still lying on the ground and in handcuffs, felt blood around his face and in his mouth, so he spit the blood out, but it landed on Officer Brian Jay's (identified through investigation) brown/tan Timberland boots. § 87(2)(b) described Officer Jay as a 6' 2" tall white male with red/blond hair, blue eyes (wearing glasses), and in his late thirties. § 87(2)(b) explained that his eyes were closed when he spit and he did not realize that the spit landed on Officer Jay's boots. Officer Jay became angry, stated "You spit on my boots," and kicked § 87(2)(b) about three or four times in the left side of his head using his right foot. Officer Diaz and another officer, described as a Hispanic male and identified through investigation as Sgt. McHugh, were standing next to Officer Jay as he kicked § 87(2)(b) in the head. § 87(2)(b) tried to explain to the officers that he was the victim and he was just trying to get away from an individual who was trying to assault him. § 87(2)(b) added that there was an unidentified female who was standing across the street from the club and who observed when Officer Jay kicked him. The female shouted that he stopped kicking § 87(2)(b) and she was also placed in handcuffs and the officers obtained her information, but § 87(2)(b) was unsure of what led to her being placed in handcuffs and what later happened with her.

§ 87(2)(b) noted that § 87(2)(b) and § 87(2)(b) were placed in handcuffs before him. He explained that when he grabbed § 87(2)(b) and began to run, § 87(2)(b) did not follow him immediately and the officers were able to apprehend both § 87(2)(b) and § 87(2)(b) and place them in handcuffs, while § 87(2)(b) was tackled to the ground a few feet away. § 87(2)(b) reiterated that the officers did not announce that they were officers and they did not have their shields hanging around their necks, so he did not immediately realize that they were officers. § 87(2)(b) did not see which officer placed § 87(2)(b) and § 87(2)(b) in handcuffs.

§ 87(2)(b) § 87(2)(b)'s friend, who came out almost immediately after § 87(2)(b) ran out of the "Red Lounge," was standing on the sidewalk and saw everything that transpired. § 87(2)(b) however, did not believe § 87(2)(b) saw anything because he might have still been inside the club. He added that there was a brawl both inside and outside the club, so there were a lot of police officers (plainclothes and uniformed) present at the scene. Officer Diaz picked § 87(2)(b) up from the ground, and he was transported to the stationhouse by two uniformed Hispanic male officers, who did not witness Officer Jay kick § 87(2)(b) in the head.

Upon arrival at the stationhouse, § 87(2)(b) who was still bleeding from his injuries, kept stating to the other officers (Officer Diaz, Sgt. McHugh and other officers present at the stationhouse, including the desk officer) that Officer Jay kicked him in the head. § 87(2)(b) then asked Officer Jay for his name, but Officer Jay ignored him. While § 87(2)(b) was complaining that Officer Jay kicked him in the head, Officer Jay stated that § 87(2)(b) should not have spit on his boots. § 87(2)(b) also asked Officer Diaz and Sgt. McHugh for Officer Jay's name, but they also ignored him. § 87(2)(b) was present and standing close to § 87(2)(b) when he asked Officer Jay for his name. About a half hour after arriving at the stationhouse, § 87(2)(b) was taken in an ambulance to the hospital by Officer Diaz.

§ 87(2)(b) was charged with § 87(2)(b), while § 87(2)(b) was charged with § 87(2)(b).

Results of Investigation

Civilians Not Interviewed

The undersigned investigator called § 87(2)(b) and § 87(2)(b) at the phone numbers provided between the periods of February 13, 2009 and April 27, 2009. § 87(2)(b) was unavailable because his phone number was disconnected. Messages were left for § 87(2)(b) and § 87(2)(b) but they did not respond to the contact attempts by phone. § 87(2)(b)'s mailing address was also unavailable, but two letters each were sent to § 87(2)(b) and § 87(2)(b) between the periods of February 23, 2009 and March 5, 2009. The letters were not returned by the United States Postal Service, and both § 87(2)(b) and § 87(2)(b) have yet to respond to the contact attempts to schedule an interview.

Contact information was also obtained for other possible witnesses as per the complaint report (encl. 8c-e) and the Sprints (encl. 12a-j). On February 13, 2009, the undersigned investigator called § 87(2)(b) § 87(2)(b) who provided a phone statement summarized in the telephone statement sub-section below. The complaint report also lists two victims, § 87(2)(b) and § 87(2)(b) who were unavailable, in addition to § 87(2)(b). The undersigned investigator called § 87(2)(b) five times between February 18, 2009 and April 22, 2009, but her phone number was disconnected and

messages could not be left, while searches for § 87(2)(b)'s phone number were futile. Two letters each were sent to § 87(2)(b) and § 87(2)(b) between February 18 and April 27, 2009. None of the letters sent to § 87(2)(b) was returned by the United States Postal Service. However, the first letter sent to § 87(2)(b) on February 18, 2009, was returned on March 11, 2009.

Phone numbers for the individuals (§ 87(2)(b), § 87(2)(b), § 87(2)(b) and an unidentified male) who called 911 regarding the incident at the "Red Lounge" were obtained from the Sprint and calls were made to them between the periods of February 18 and 23, 2009. § 87(2)(b), § 87(2)(b) and the unidentified male all stated that they did not observe any police-civilian interaction subsequent to their calls. § 87(2)(b), who identified himself as § 87(2)(b) when he called 911, noted that he works as a security guard at the Red Lounge, but was unable to recall the specificity of the incident because of the frequency at which fights occur at the location.

Telephone Statement

§ 87(2)(b) the victim of the assault, was contacted by the undersigned investigator on February 13, 2009, and he provided the following statement. On January 24, 2009, a fight broke out inside the "Red Lounge," and it spilled outside into the street. There were about four or five people assaulting § 87(2)(b) and during the assault, officers (plainclothes and in uniform) responded to the scene in about four or five patrol cars. § 87(2)(b) was hurt from being assaulted and several people were placed in handcuffs including § 87(2)(b).

§ 87(2)(b) acknowledged that some people tried to run when the officers arrived at the scene, but he did not know how the officers were able to apprehend them, if they did. § 87(2)(b) did not see the officers "tackle anyone to the ground" and he did not see anyone else injured at the scene. He stated that he was transported to the stationhouse by two uniformed white male officers in a marked police vehicle.

§ 87(2)(b) stressed that he was the victim, and he was not paying attention to anyone else but himself, so he did not observe what was going on around him. He stated that the officers did their jobs by placing everyone in handcuffs, but he could not provide specific descriptions for how the officers "did their jobs." When they got to the stationhouse, he was taken to the hospital where he was treated for his injuries.

Identification of Officers Interviewed

Officer Johnny Diaz was noted as the arresting officer in the arrest report. During his interview, Officer Diaz identified Officer Jay, Sgt. McHugh and Officer Walters as the other officers he was working with on the night of the incident.

Officers Interviewed

Officer Johnny Diaz from the 34th Precinct was interviewed at the CCRB on March 18, 2009 (encl. 8a-o). Officer Diaz is a § 87(2)(b)-year-old, 6ft tall, 180-pound bald white male brown eyes. On January 24, 2009, Officer Diaz was assigned to the anti-crime unit and he worked with Sgt. Michael McHugh, Officer John Walters and Officer Brian Jay. They were all in plain clothes and assigned to a black Chevy impala #§ 87(2)(b). Officer Diaz was the driver of the vehicle and they worked from 8:30PM to 5:05AM on January 25, 2009. In his memo book, Officer Diaz noted that at 4:30AM, there was a pick up of a 10-34 at 238 Sherman Avenue, and at 10:34, two people were under arrest for § 87(2)(b).

On January 24, 2009, at approximately 4:30AM, Officer Diaz along with Officer Jay, Officer Walters, and Sgt. McHugh were parked across from a bar/club called "Red Lounge" located at 238 Sherman Avenue, in Manhattan, and were just observing the area because of the prevalence of fights breaking out at the location. He explained that they usually sit around the vicinity of the club because of the constant fights that occur. He added that there was a recent incident in which one of the bosses of the lounge was stabbed by one of the clients. After ten to fifteen minutes of sitting there, the officers observed a large crowd of about twenty-thirty people running out of the club and then they observed two males, § 87(2)(b) and § 87(2)(b) chasing another male, § 87(2)(b) § 87(2)(b) and § 87(2)(b) caught up to § 87(2)(b) on the sidewalk in front of the Red Lounge, and began punching him. § 87(2)(b) tried to get away from them and ran to the street but they followed him and knocked him to the ground, punching and kicking him.

Upon observing this, all four officers exited the vehicle and ran towards the individuals, announced that they were officers, told them not to move, and grabbed § 87(2)(b) and placed him in handcuffs. § 87(2)(b) who attempted to run away, ran about twenty feet with Officer Diaz behind him. § 87(2)(b) tripped and fell face down to the ground while Officer Diaz was about two to three feet behind him. § 87(2)(b) scraped the right side of his face because he landed on his face. Officer Diaz did not see what § 87(2)(b) tripped over. He guessed § 87(2)(b) tripped over his own feet. Officer Diaz did not have any physical contact with § 87(2)(b) before he fell to the ground and he did not believe any other officer did.

§ 87(2)(b) then attempted to lift his body up, but Officer Jay, who must have been running behind Officer Diaz, tackled § 87(2)(b) down by jumping on his back, pressing his locked arms against the back of § 87(2)(b)'s neck/upper torso, to keep him to the ground and restrain him. § 87(2)(b)'s face might have made contact with the ground from the contact with Officer Jay but Officer Diaz was unsure. Officer Diaz then tried to place § 87(2)(b) in handcuffs but § 87(2)(b) kept flailing his arms and so Officer Diaz needed assistance from the other officers. § 87(2)(b) was also intoxicated because his breath smelt of alcohol and he continued to resist being placed in handcuffs by moving his arms around and was yelling and screaming. Officer Jay continued to keep § 87(2)(b)'s body to the ground while Sgt. McHugh, who had also joined them, held § 87(2)(b)'s arms as Officer Diaz placed § 87(2)(b) in handcuffs. Officer Walters, on the other hand, was with § 87(2)(b) and § 87(2)(b). Once he was placed in handcuffs, he was lifted up from the ground and transported to the stationhouse by two uniformed officers in a marked police vehicle. Officer Diaz also later transported § 87(2)(b) to the hospital for his injuries. All of the officers were present at the stationhouse when § 87(2)(b) was brought to the stationhouse. Officer Diaz did not hear § 87(2)(b) ask any officer for his name or shield number. Officer Diaz did not remember hearing any of the officers (his team) at the stationhouse stating that § 87(2)(b) spit on his boots.

Officer Diaz did not observe § 87(2)(b) spit blood on any officer's boots and he did not remember there being an incident of § 87(2)(b) spitting on any officer's boots. Officer Diaz did not see any officer kick § 87(2)(b) in the head and Officer Diaz did not kick § 87(2)(b). § 87(2)(b) also never made any complaints about being kicked by any officer after he was placed in handcuffs until he got to the hospital where he stated that an officer hit him. This was the only indication Officer Diaz had that § 87(2)(b) was going to file a complaint against the NYPD. Officer Diaz did not recall § 87(2)(b) making any such complaints or stating that any officer hit him at the stationhouse.

Officer Diaz stated he might have been wearing a green zipper jacket and boots or sneakers. He did not remember what the other officers were wearing but he knew that Sgt. McHugh always wears a black hoodie. Officer Diaz also confirmed that Officer Jay wears glasses.

Sgt. Michael McHugh, from the 34th Precinct, was interviewed at the CCRB on April 1, 2009 (encl. 9a-e), and he provided the following statement. Sgt. McHugh is a 6' 3" tall, 245-pound white male with red hair and blue eyes. On January 24, 2009, Sgt. McHugh was assigned as the anti-crime unit supervisor and he worked with Officer Johnny Diaz, Officer Brian Jay and Officer John Walters from 8:30PM to 7:14AM. They were all in plain clothes and assigned to unmarked police vehicle #§ 87(2)(b). Sgt. McHugh was positioned in the front passenger seat while Officer Diaz was the driver. In his memo book, Sgt. McHugh noted that at 4:37AM, two people were under arrest from the front of 238 Sherman Avenue, in Manhattan.

On January 24, 2009, at approximately 4:37AM, Sgt. McHugh, Officer Diaz, Officer Jay and Officer Walters were all positioned in the unmarked police vehicle which was parked across the street from the Red Lounge located at 238 Sherman Avenue, in Manhattan. A fight broke out in front of the location and the officers observed two males beating up a third male. The officers exited the vehicle (Sgt. McHugh was the first one out) and approached them. The officers identified themselves as police officers and instructed them to stop, but they refused to. Sgt. McHugh tried to grab all three of them but one of them § 87(2)(b) took off and Sgt. McHugh was only able to grab two of them to the ground. Officer Jay and Officer Diaz went after § 87(2)(b) who took off, while Sgt. McHugh and Officer Walters placed the two apprehended individuals in handcuffs. After they were handcuffed, Sgt. McHugh realized that Officer Jay and Officer Diaz were still struggling with § 87(2)(b) and trying to place him in handcuffs. § 87(2)(b) was trying to get up and get away from them and moving his arms around as they tried to handcuff him, so Sgt. McHugh went over to assist them. He noted that this was approximately three

to four minutes after Officer Jay and Officer Diaz had run after § 87(2)(b). However, Officer Walters did not join in apprehending § 87(2)(b) because he was placing the other two individuals into arriving patrol vehicles.

Sgt. McHugh observed both § 87(2)(b) and Officer Jay on the ground with Officer Jay on § 87(2)(b)'s back and § 87(2)(b) pushing up and trying to get Officer Jay off his back. However, Sgt. McHugh did not know or see how they fell to the ground. He noted that the last time he observed § 87(2)(b) before the struggle with the officers, § 87(2)(b) was running away and the next time he observed him, he was on the ground. Officer Diaz was on one side of § 87(2)(b) trying to get grab his arms, while Officer Jay was on top of him and trying to grab his arms as well. Sgt. McHugh then swung his right foot (at least once, and maybe twice, but he was unsure) against § 87(2)(b)'s arms in order to sweep them off the ground so that he could be handcuffed. Sgt. McHugh believed he was in front of § 87(2)(b) when he swept § 87(2)(b)'s arms off the ground. Sgt. McHugh's foot also struck Officer Jay's hands, and Sgt. McHugh was unsure if his foot struck any other part of § 87(2)(b)'s body. § 87(2)(b) collapsed to the ground with his arms spread out in front of him, while Officer Jay was still on his back. Sgt. McHugh believed § 87(2)(b)'s chest and head hit the ground when he fell to the ground. The officers were then able to place him in handcuffs. Once § 87(2)(b) was in handcuffs and off the ground, the officers observed that § 87(2)(b) had a bruise below his right eye. Sgt. McHugh was unsure if § 87(2)(b) sustained an injury and was bleeding before the interaction with the officers, but Sgt. McHugh did not notice any injuries until § 87(2)(b) was placed in handcuffs and lifted from the ground.

Sgt. McHugh noted that § 87(2)(b) was on the ground for less than a minute because once he was placed in handcuffs, he was picked up from the ground. Sgt. McHugh was unaware of any issue with § 87(2)(b) spitting blood on any officer's boots. § 87(2)(b) did not spit blood on his boots and he did not kick § 87(2)(b) in the head at any point. The only time Sgt. McHugh's foot made contact with any part of § 87(2)(b)'s body was when Sgt. McHugh swept § 87(2)(b)'s arms out to get him arrested. Sgt. McHugh did not observe any officer kick § 87(2)(b) in the head. He also did not recall hearing any officer complain or state that § 87(2)(b) spit blood on his boots.

After § 87(2)(b) was placed in handcuffs, he was transported to the stationhouse. Sgt. McHugh noted that additional units arrived shortly after the fight broke out, and he believed his team may have called for assistance. Sgt. McHugh believed that the additional units arrived after the individuals were already handcuffed.

Upon arrival at the stationhouse, the officers determined that § 87(2)(b) was the victim. His statement was obtained, while § 87(2)(b) and § 87(2)(b) were charged with assault in the third degree. While at the stationhouse, Sgt. McHugh did not hear § 87(2)(b) complain that any officer kicked him. Sgt. McHugh also did not hear § 87(2)(b) have any exchange with any officer at the stationhouse to the effect that the officer kicked him in the head or any officer responding that he kicked § 87(2)(b) because § 87(2)(b) spit blood on his boots. § 87(2)(b) also did not ask Sgt. McHugh for his name and shield number, and Sgt. McHugh did not hear § 87(2)(b) ask any officer for his name and shield number. § 87(2)(b) did not ask Sgt. McHugh for any officer's name and shield number. Sgt. McHugh described § 87(2)(b)'s demeanor at the stationhouse as normal. The officers called EMS to obtain medical treatment for § 87(2)(b) and he was later transported to Manhattan Central Booking. Later on, a notification to IAB was done under log #09-3546.

Officer Brian Jay of the 34th Precinct was interviewed at the CCRB on April 3, 2009 (encl. 10a-e). Officer Jay is a § 87(2)(b)-year-old, a 6ft tall, 170-pound white male with brown hair and brown eyes. On January 24, 2009, Officer Jay was assigned to the anti-crime unit and he worked with Officer Johnny Diaz, Officer John Walters and Sgt. Michael McHugh from 8:30PM to 5:05AM on January 25, 2009. They were all in plainclothes and assigned to an unmarked black Chevy impala #§ 87(2)(b). Officer Jay was in the rear passenger seat and Officer Diaz was the driver, while Sgt. McHugh was in the front passenger seat.

On January 24, 2009, at approximately 4:37AM, the officers were driving on Sherman Avenue, in Manhattan, when they were flagged down by two or three bouncers from the Red Lounge, and they also observed a fight break out of the Red Lounge with two males assaulting a third male. Officer Jay described it as a violent fight and stated that the two individuals "were really beating that kid up." They were in the middle of the street (about twenty-five feet from the entrance of the Red Lounge) when the officers pulled their vehicle next to them. The officers exited the vehicle and approached them, stating, "Police, don't move." Two of the males ran off and one of them stayed behind. Officer Jay chased one of the individuals,

§ 87(2)(b) while Officer Walters chased the other one. After a short pursuit (approximately half of a block), Officer Jay was able to grab § 87(2)(b) and force him unto the ground. Officer Jay explained that he was able to grab unto § 87(2)(b)'s back by wrapping his arms around § 87(2)(b)'s chest, and he used his body weight to drag § 87(2)(b) unto the ground. Officer Jay was unsure if he was the only officer who initially chased after § 87(2)(b) but he noted that he was the first officer to grab § 87(2)(b). Officer Jay was able to restrain § 87(2)(b)'s arms as he pulled § 87(2)(b) to the ground with his body weight. The entire front part of § 87(2)(b)'s body ("his chest and maybe his head") hit the ground, but Officer Jay did not know what part of § 87(2)(b)'s body hit the ground first. Officer Jay added that his hands were around § 87(2)(b) so they both landed on the ground together with Officer Jay on § 87(2)(b)'s back.

While § 87(2)(b) was on the ground, § 87(2)(b) was still very strong and he assumed the front leaning rest position (push-up position). § 87(2)(b) tried to push Officer Jay off his back by lifting himself up and Officer Jay was unable to get § 87(2)(b)'s arms behind his back to place them in handcuffs. (Officer Jay stated that § 87(2)(b) was very strong and he was also intoxicated). Officer Diaz, who might have been right behind Officer Jay, came over (within seconds) to § 87(2)(b)'s left side and was able to grab his left arm and place it behind his back. However, his right arm was still firmly on the ground and Sgt. McHugh also came over (within seconds) and swept § 87(2)(b)'s right arm out from under him to free his arm from the ground. Officer Jay's hand was on § 87(2)(b)'s wrist at this time and Sgt. McHugh hit Officer Jay's hand in his initial attempt to sweep § 87(2)(b)'s arm off the ground with his foot. Officer Jay then pulled his hand away and Sgt. McHugh was able to sweep § 87(2)(b)'s arm from the ground. Officer Jay did not believe Sgt. McHugh made contact with any other part of § 87(2)(b)'s body as he swept § 87(2)(b)'s arm off the ground. Officer Jay was then able to grab § 87(2)(b)'s right arm and place it behind his back and § 87(2)(b) was placed in handcuffs. Sgt. McHugh's foot did not make contact with § 87(2)(b)'s head, but his wrist. Officer Jay noted that he was on the ground for approximately forty to forty-five seconds before he was able to place § 87(2)(b) in handcuffs. After § 87(2)(b) was handcuffed, he continued to struggle and the officers sat him on the ground for about two-three minutes until a patrol car arrived and transported him to the stationhouse.

Officer Jay observed that § 87(2)(b) had a scrape to his cheek, but he did not know how § 87(2)(b) sustained the injury. He stated that it could have either been from the tackle or from the fight prior to the tackle. Officer Jay, however, did not notice the injury until after § 87(2)(b) was placed in handcuffs. Officer Jay acknowledged that § 87(2)(b) was bleeding from his lip because he also had a cut on his lip, but he was not bleeding from the scrape. Officer Jay also acknowledged that he (Officer Jay) might have been wearing a pair of tan/brown timberland boots on the day of the incident because he wears them often. He further acknowledged that while § 87(2)(b) was sitting on the ground, § 87(2)(b) turned his head around and spit blood on his pants and on his boots. § 87(2)(b) did this twice, and the first time, Officer Jay stated, "Don't do that" in a conversational tone. § 87(2)(b) then stated, "Why? Your shoes are busted anyway." He then turned around again and spit blood on Officer Jay's boots again. Officer Jay stated that, at this point, he just laughed it off because he knew § 87(2)(b) was drunk and he was going to jail anyway. Officer Jay maintained that he never kicked § 87(2)(b) in the head at any point.

Officer Jay observed § 87(2)(b) at the stationhouse when they got back and he described § 87(2)(b)'s demeanor as drunk, agitated, and combative. § 87(2)(b) was upset and was yelling and screaming about being arrested. Officer Jay did not know if § 87(2)(b) was making any complaints or statements about how he sustained his injuries at the stationhouse. Officer Jay stated that he was not the arresting officer, so he did not stay back at the stationhouse. § 87(2)(b) did not ask Officer Jay for his name and shield number while at the stationhouse. Officer Jay also did not hear § 87(2)(b) ask any officer for his name and shield number. Also while at the stationhouse, § 87(2)(b) did not accuse Officer Jay of kicking him in the head in the street. Officer Jay also did not make any statement to the effect that if § 87(2)(b) had not spit on him, he would not have kicked him. Officer Jay asserted that he had no conversation with § 87(2)(b) at the stationhouse. Officer Jay was also not aware if § 87(2)(b) made complaints that an officer kicked him in the head.

Officer Jay believed that § 87(2)(b) was escorted by Officer Diaz, via an EMS ambulance to § 87(2)(b) where he was treated for a scrape to his face. Officer Jay also believed that the victim of the fight might also have sustained injuries because all three of them were brought back to the stationhouse where Officer Jay saw them.

Officer John Walters from the 34th Precinct was interviewed at the CCRB on April 16, 2009 (encl. 11a-b). Officer Walters is a § 87(2)(b)-year-old, 6ft tall, 203-pound, white male with black hair and brown eyes. On January 24, 2009, Officer Walters was assigned to the anti-crime unit along with Officer Johnny Diaz, Officer Brian Jay, and Sgt. McHugh. Officer Walters described the anti-crime unit as a plainclothes unit patrolling a designated area in an unmarked vehicle. They were all in plain clothes and assigned to an unmarked police vehicle. Officer Walters did not have his memo book on him at the time of his interview. He did not remember if he was the operator or where he was positioned in the vehicle. He, however, remembered that Sgt. McHugh was in the front seat.

At approximately 4:37AM, on January 24, 2009, the officers were parked across the street in front of the “Red Lounge” located at 238 Sherman Avenue, in Manhattan. Officer Walters observed three males who exited the club get into a fight in the middle of the street. Upon observing the individuals, the officers exited the vehicle and grabbed one the males (later identified from the arrest photo as § 87(2)(b) who was throwing punches, while the other two males ran in different directions. Officer Walters placed the individual he grabbed in handcuffs (under arrest) and he was transported to the stationhouse in a patrol vehicle. Officer Walters was by himself when he placed this individual in handcuffs.

Officer Walters knew that the other individuals were apprehended a half a block up from where they took off. Officer Walters did not specifically know which officer apprehended any of the two individuals, and he did not see how or when the officers apprehended them. Officer Walters also did not observe any officer fall to the ground or on the ground at any point. Officer Walters noted that § 87(2)(b) was placed inside a patrol vehicle which was positioned directly in front of the “Red Lounge.” Officer Walters remained in front of the “Red Lounge” at that point. The other officers returned to the front of the Red Lounge approximately five-ten minutes later, but they were without the other two individuals who had been placed in other patrol vehicles.

Officer Walters was shown the arrest photo for § 87(2)(b) and he recognized him as the individual he apprehended and arrested. Officer Walters was certain because he remembered that § 87(2)(b) was wearing a red shirt as the photo depicted. He noted that § 87(2)(b) also attempted to run, but he (Officer Walters) was able to grab him before he did so. Officer Walters was also shown the arrest photo for § 87(2)(b) and he recognized him as one the individuals who was fighting.

§ 87(2)(b) was placed in a patrol car, but Officer Walters did not believe he transported § 87(2)(b) himself. He, however, saw § 87(2)(b) when he went back to the stationhouse. Officer Walters also saw § 87(2)(b) back at the stationhouse and that was the next time he saw § 87(2)(b) since when he initially observed him run in the street. Both § 87(2)(b) and § 87(2)(b) were in front of the desk officer when Officer Walters observed them. Officer Walters noted that he went back to the stationhouse with the other three officers (Officer Jay, Officer Diaz, and Sgt. McHugh). While at the stationhouse, Officer Walters did not hear § 87(2)(b) make any complaints about any officers using force against him. He did not hear § 87(2)(b) state anything to the effect that an officer kicked him in the head. § 87(2)(b) did not ask Officer Walters for his name and he did not ask Officer Walters for any other officer’s name. Officer Walters also did not hear § 87(2)(b) ask any officer for his name. Officer Walters did not hear Officer Jay or any other officer at the stationhouse state that § 87(2)(b) spit blood on his boots. Officer Walters described § 87(2)(b)’s demeanor as normal while at the stationhouse. There was nothing out of the ordinary about his behavior and Officer Walters did not remember hearing § 87(2)(b) complaining about anything or being irate.

Officer Walters did not believe any of the other individuals sustained any injuries. He also did not know or become aware of how § 87(2)(b) sustained his injuries. Officer Walters noted that there were about three marked patrol vehicles which responded to the location and none of the responding officers was involved in apprehending the three individuals. The individuals were already apprehended and in handcuffs upon the arrival of the other units.

Medical Records

The FDNY pre-hospital care report dated § 87(2)(b) (encl. 12a-c) notes that § 87(2)(b) stated that he was “attacked and dropped.” The report also notes that § 87(2)(b) stated that he was involved in an argument and was attacked by a crowd.

Medical records from the § 87(2)(b) dated § 87(2)(b) (encl. 12d-g) notes that § 87(2)(b) arrived at the hospital at § 87(2)(b) and sustained facial abrasions delineated as

abrasions and swellings to the right cheek and right forehead, and swelling to the nose and upper lip. He was seen at § 87(2)(b) and was administered ibuprofen and tetanus shots. He was subsequently discharged at § 87(2)(b).

Communications Documents

Sprints (encl. 12a-j)

Sprint #§ 87(2)(b) notes that at 4:21AM, there was an assault in progress and a sergeant at the scene of the location (34SP88). At 4:30AM, a call was made to 311 (transferred to 911) by a female (later identified as § 87(2)(b) who stated that there was a fight in front of the “Red Lounge” located at 238 Sherman Avenue, in Manhattan. The sprint further notes that a large group was involved, but no injuries or weapons were reported at the time. There was one shot fired. At 4:37AM, two people were arrested and the arrest was verified by a sergeant on scene. At 4:40AM, the stationhouse was notified. At 4:47AM, the officers returned to patrol. At 5:37AM, there was another report regarding an assault in progress and it was noted that an arrest had been made as of 4:47AM and the arrest had been verified.

Sprint #§ 87(2)(b) notes that at 5:05AM, a call was made by a male who identified himself as an Auxiliary Police Officer and requested back up at West 207 Street and Sherman Avenue. It was then noted that the situation was just a dispute and a sergeant and team had responded to location.

Sprint #§ 87(2)(b) notes that at 4:55AM, a male caller (§ 87(2)(b)) reported that there were about seven Hispanic males with a gun at the Red Lounge. The caller stated that males were talking to his friend. The male caller hung up (there was a lot of noise in the background as per the sprint).

Police Documents

The complaint report (encl. 14a) notes that § 87(2)(b) and § 87(2)(b) were observed assaulting § 87(2)(b). It further notes that § 87(2)(b) complained that § 87(2)(b) and § 87(2)(b) assaulted her while inside the “Red Lounge.” § 87(2)(b) who was listed as the third defendant, also complained that he was hit in the head with a bottle by § 87(2)(b) and § 87(2)(b). The investigating officer was listed as Officer Diaz, the supervisor as Sgt. McHugh, and the officer who entered the report as Officer Jay.

The arrest photo (encl. 7a) notes that § 87(2)(b) was arrested for § 87(2)(b). It also reveals an injury (redness and scrapes) to § 87(2)(b)'s right cheekbone area.

The Criminal Court Complaint report (encl. 8g-h) prepared subsequent to § 87(2)(b)'s arrest notes that § 87(2)(b) was charged with § 87(2)(b) § 87(2)(g). § 87(2)(b) it further notes that § 87(2)(b) attempted to prevent the officers from arresting him someone else.

The Criminal Court Complaint report (encl. 8i) prepared subsequent to § 87(2)(b)'s arrest notes that § 87(2)(b) was charged with § 87(2)(b). It further notes that § 87(2)(b) was observed striking § 87(2)(b) in the head and torso with a closed fist and with his foot, causing § 87(2)(b) to sustain injuries.

Notice of Claim

On April 29, 2009, Ms. Sharina Soriano of the NYC Office of the Comptroller confirmed that § 87(2)(b) has not filed a notice of claim regarding this incident (encl. 17j).

Subject Officer History

Officer Jay has been with the NYPD for twelve years and has not been the subject of any substantiated CCRB allegations (encl. 2a-b).

Sgt. McHugh been with the NYPD for nine years and has been the subject of one substantiated CCRB (#200301006) allegation, and he was given instructions (encl. 2c).

Complainant CCRB History

This is the first CCRB complaint § 87(2)(b) has filed (encl. 3a)

Subject Officer Identification

§ 87(2)(b) also alleged that he asked the officer who allegedly kicked him for his name while at the stationhouse. § 87(2)(g)

§ 87(2)(g)

It is undisputed that § 87(2)(b) and § 87(2)(b) were involved in a fight with § 87(2)(b) in front of the “Red Lounge” at approximately 4:37AM on January 24, 2009. Also undisputed is the fact that § 87(2)(b) attempted to run away when the officers approached. It is also undisputed that Officer Jay had to forcefully apprehend § 87(2)(b) by grabbing him from behind and forcing him to the ground. Not disputed is the fact that Sgt. McHugh, using his foot, swept § 87(2)(b)'s arm off the ground in order to place § 87(2)(b) in handcuffs. Also not disputed is the fact that § 87(2)(b) spit blood on Officer Jay's boots after he was placed in handcuffs. Finally, not in dispute is the fact that § 87(2)(b) sustained a bruise to the right side of his face and a cut to his lip.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Regarding allegation C, § 87(2)(b) alleged that Officer Jay kicked him about three or four times to the left side of his head after he spit blood on Officer Jay's boots. Officer Diaz and Sgt. McHugh maintained that they were not aware of § 87(2)(b)'s spitting of blood on Officer Jay's boots and that they did not observe Officer Jay kick § 87(2)(b) in the head. On the other hand, Officer Jay acknowledged that § 87(2)(b) spit blood on his boots, but he denied kicking § 87(2)(b) in the head at any point during their encounter. Officer Jay noted that § 87(2)(b) spit blood on his boots twice, and the first time, he stated, "Don't do that" to § 87(2)(b). However, § 87(2)(b) spit again, and after he did, Officer Jay merely laughed it off because § 87(2)(b) was already under arrest. § 87(2)(g)

Regarding allegation D, § 87(2)(b) alleged that he asked Officer Jay for his name while at the stationhouse, but Officer Jay refused to provide the information to him. Officer Jay, on the other hand, denied this allegation. Furthermore, the other officers interviewed maintained that they did not hear § 87(2)(b) ask Officer Jay for his name and that § 87(2)(b) did not ask them for Officer Jay's name.

§ 87(2)(g)

Allegation A: Officer Brian Jay used physical force against § 87(2)(b)

§ 87(2)(g)

According to the Patrol Guide (encl. 1a-b), an officer may apply the minimum amount of force that is necessary to overcome resistance in order to effect a lawful arrest. § 87(2)(g)

§ 87(2)(g)

[REDACTED]

Allegation B: Sgt. Michael McHugh used physical force against § 87(2)(b)

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

Allegation C: Officer Brian Jay used physical force against § 87(2)(b)

§ 87(2)(g)

[REDACTED]

Officer Diaz and Sgt. McHugh, who assisted in placing § 87(2)(b) in handcuffs, noted that § 87(2)(b) was picked from the ground once he was placed in handcuffs. They both did not recall observing § 87(2)(b) spit on Officer Jay's boots and they did not see Officer Jay kick § 87(2)(b) in the head. Both officers also did not hear Officer Jay complain about § 87(2)(b) spitting on his boots.

§ 87(2)(g)

[REDACTED]

Allegation D: Officer Brian Jay refused to provide his name and/or shield number to § 87(2)(b)

§ 87(2)(g) § 87(2)(b) contended that he asked Officer Jay for his name at the stationhouse while Officer Jay maintained that § 87(2)(b) never did. The other officers also did not hear § 87(2)(b) ask Officer Jay for his name, and they denied the claim that § 87(2)(b)

§ 87(2)(b) asked them for Officer Jay's name. § 87(2)(g)

Investigator:	Date:
Supervisor:	Date:
Reviewed by:	Date:
Reviewed by:	Date: